DATED 29 SEPTEMBER 2024

HALGARTH ESTATES LIMITED

and

BROOKMERE SOFTWARE LIMITED

and

BROOKMERE HOLDINGS LIMITED

LEASE

of Fourth and Fifth Floors, Pinnacle House, 12 Wellington Place, Leeds LS1 4AP

EXECUTION VERSION — completed 29 September 2024

Particulars

Date	29 September 2024
Landlord	Halgarth Estates Limited (registered no. 08842217), Halgarth House, 4 St Paul's Street, Leeds LS1 2JG
Tenant	Brookmere Software Limited (registered no. 09765431), 1 Sovereign Square, Leeds LS1 4DA
Guarantor	Brookmere Holdings Limited (registered no. 07654329)
Property	Fourth and Fifth Floors, Pinnacle House, 12 Wellington Place, Leeds LS1 4AP (18,846 sq ft) and 12 car parking spaces
Contractual Term	15 years from and including 29 September 2024 (expiring 28 September 2039)
Initial Principal Rent	£612,500 per annum (exclusive of VAT)
Rent Commencement Date	29 June 2025 (following a 9-month rent-free period)
Rent Review Dates	29 September 2029 and 29 September 2034 (open market, upward only)
Permitted Use	offices within Use Class E(g)(i)
Tenant Break Date	29 September 2031 on not less than six months' prior written notice
Rent Deposit	£183,750 (plus VAT) under Rent Deposit Deed of even date
Contracted out of LTA 1954 ss.24–28	Yes (notice served 19 Aug 2024; declaration made 23 Aug 2024)

1. Definitions and interpretation

In this lease, “Principal Rent” means £612,500 per annum subject to review under Schedule 3; “Building” means Pinnacle House, 12 Wellington Place, Leeds LS1 4AP; “Insured Risks”, “Common Parts”, “Service Charge” and “VAT” bear the meanings given in this clause. The Particulars form part of this lease.

2. Grant

1. The Landlord lets the Property to the Tenant for the Contractual Term, together with the rights in Schedule 1 and reserving the rights in Schedule 2, the Tenant paying the rents and performing the covenants in this lease.

2. Before the Tenant became contractually bound, the Landlord served a notice under section 38A(3)(a) of the Landlord and Tenant Act 1954 and the Tenant made the appropriate declaration, so that sections 24 to 28 are excluded.

3. Rents

3. The Tenant shall pay the Principal Rent by equal quarterly instalments in advance on the usual quarter days, the first payment on the Rent Commencement Date (29 June 2025); the Service Charge under Schedule 4; the Insurance Rent; and all VAT.

4. The Principal Rent is reviewed on each Rent Review Date under Schedule 3 (upward only, open market).

5. If any rent is unpaid for more than 14 days after the due date, the Tenant shall pay interest on it at 3% above the base rate of the Landlord's bank from the due date until payment.

4. Tenant covenants

6. To pay the rents without deduction or set-off; to keep the Property in good and substantial repair (Insured Risks excepted), limited by reference to the schedule of condition at Schedule 6; to redecorate every fifth year and in the last three months of the term; not to make structural alterations and not to make internal non-structural alterations without consent (not to be unreasonably withheld); to use the Property only for the Permitted Use; and to comply with all statutory requirements.

7. Alienation: not to deal with part only; to assign the whole only with the Landlord's prior written consent (not to be unreasonably withheld), the Landlord being entitled to require an authorised guarantee agreement; to underlet the whole or a permitted part at a market rent with consent.

8. At the end of the term to yield up the Property in the condition required by this lease, having removed the Tenant's fixtures and (if required) the Tenant's alterations and made good.

5. Landlord covenants

9. Quiet enjoyment; to insure the Building against the Insured Risks for full reinstatement cost and apply the proceeds in reinstatement; and to use reasonable endeavours to provide the Schedule 4 services, subject to recovery of the Service Charge.

6. Provisos and forfeiture

10. Rent suspension applies if the Property is damaged by an Insured Risk and rendered unfit, for up to three years.

11. The Landlord may re-enter the Property (ending the term) if the rents are unpaid for 28 days after becoming due (whether demanded or not), if the Tenant breaches any covenant, or on an Act of Insolvency of the Tenant or Guarantor.

7. Guarantee

12. The Guarantor guarantees payment of the rents and performance of the Tenant's covenants as primary obligor, and shall if required take a new lease for the residue of the term on disclaimer.

8. Break option

13. The Tenant may determine this lease on 29 September 2031 by giving the Landlord not less than six months' prior written notice.

14. The break is conditional only on (a) the Tenant having paid the Principal Rent due to the Break Date and (b) giving up vacant possession. No other pre-conditions apply. The Landlord shall refund any rent and service charge paid for any period after the Break Date within 20 Working Days.

9. Miscellaneous

15. Section 196 LPA 1925 applies to notices. No third party rights under the Contracts (Rights of Third Parties) Act 1999. Governed by the law of England and Wales, exclusive jurisdiction of the English courts.

Schedule 3 — Rent review

On each Rent Review Date the Principal Rent is reviewed to open market rent (willing landlord and tenant; term equal to the unexpired residue or 10 years if longer; vacant possession; disregarding goodwill and tenant's improvements), upward only, determined failing agreement by an independent surveyor appointed by the President of the RICS.

Schedule 4 — Service charge

The Tenant pays a fair proportion (by net internal floor area) of the Service Costs, on account quarterly with an annual balancing payment or credit, capped in the first service charge year at £8.75 per sq ft (RPI-indexed).

Schedule 6 — Schedule of condition

A photographic schedule of condition prepared by Calderbank Vine dated August 2024 is annexed; the Tenant's repairing obligation is limited by reference to it.

Execution

EXECUTED as a deed and delivered on 29 September 2024.

Executed as a deed by HALGARTH ESTATES LIMITED acting by Director — E. Pennington / Witness .....

Executed as a deed by BROOKMERE SOFTWARE LIMITED acting by Director / Witness .....

Executed as a deed by BROOKMERE HOLDINGS LIMITED acting by Director / Witness .....